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Case Number: 25NNCV07999 Hearing Date: July 17, 2026 Dept: A

TENTATIVE RULING

JULY 17, 2026

DEMURRER; MOTION TO STRIKE

Los

Angeles Superior Court Case # 25NNCV07999

MP: Defendants

Glendale Unified School District and Theodore Roosevelt Middle School

RP: Plaintiffs

Raymond Ryan Raffouly and Rita Menasian

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Raymond Ryan Raffouly
and Rita Menasian ("Plaintiffs") allege
that on February 3, 2025, Theodore Roosevelt Middle School ("TRMS"), Glendale
Unified School District ("GUSD"), David T. Beard ("Beard"), Armenuhi Barakezyan
("Barakezyan"), Perla Chavez-Fritz ("Chavez-Fritz"), City of Glendale ("City"),
County of Los Angeles ("County"), and State of California ("State")
(collectively, "Defendants") failed to exercise ordinary care, caution, or
prudence to avoid or prevent the accident and that the injuries sustained by
Plaintiff was caused by Defendants' negligence.
Plaintiffs allege that Defendant Employer(s) had independent duties to
properly hire, train, and supervise Defendant Employees and that the employees
failed such duties.

The Complaint,
filed November 12, 2025, alleges a single cause of action for General
Negligence.

MOTION ON CALENDAR:

On April 8, 2026, GUSD
and TRMS filed a Demurrer and Motion to Strike portions of the Complaint. On July
6, 2026, Plaintiffs filed an opposition to the demurrer. On July 10, 2026, GUSD and TRMS filed a reply
to Plaintiffs' opposition to the demurrer and a notice of non-opposition to the
motion to strike.

LEGAL STANDARD:

A.
Demurrer

The grounds for a
demurrer must appear on the face of the pleading or from judicially noticeable
matters. (C.C.P. § 430.30(a); Blank v. Kirwan (1985) 39 Cal. 3d 311,
318.) A demurrer for sufficiency tests whether the complaint states a cause of
action. (Hahn v. Mirza (2007) 147 Cal.App.4th 740, 747.) The only issue
involved in a demurrer hearing is whether the complaint states a cause of
action. (Id.)

A demurrer

assumes the truth of all factual, material allegations properly pled in the challenged pleading. (Blank, *supra*, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (Blank, *supra*, 39 Cal. 3d at 318.)

Pursuant to

C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (Schifando v. City of Los Angeles (2003) 31 Cal. 4th 1074, 1082.)

B. Motion to Strike

Motions to

strike are used to reach defects or objections to pleadings that are not challengeable by demurrer, such as words, phrases, and prayers for damages. (See C.C.P. §§ 435, 436, and 437.) The proper procedure to attack false allegations in a pleading is a motion to strike. (C.C.P. § 436(a).) In granting a motion to strike made under C.C.P. § 435, "[t]he court may, upon a motion made pursuant to Section 435 [notice of motion to strike whole or part of complaint], or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading." (C.C.P. § 436(a).) Irrelevant matters include immaterial allegations that are not essential to the claim or those not pertinent to or supported by an otherwise sufficient claim. (C.C.P. § 431.10.)

The court may

also "[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (C.C.P. § 436(b).)

MEET AND CONFER:

C.C.P. §§ 430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (Whitmore Decl., ¶¶2-7.)

DEMURRER ANALYSIS:

GUSD and TRMS to the Complaint on the grounds that it fails to state sufficient facts and is uncertain.

A.

Statutory Claim

– Sustained with Leave to Amend

GUSD and TRMS to demur to the Complaint, arguing that Plaintiffs have failed to identify a statutory basis for their claims.

Under the statutory scheme in California, all government tort liability must be based on statute. (Duarte v. City of San Jose (1980) 100 Cal.App.3d 648, 653.) Government Code § 815, enacted in 1963, abolished all common law or judicially declared forms of liability for public entities, except for such liability as may be required by the federal or state Constitution. (Cochran v. Herzog Engraving Co. (1984) 155 Cal. App. 3d 405, 409.) Accordingly, in the absence of some constitutional requirement, public entities may be liable only if a statute declares them to be liable. (Id.) In short, sovereign immunity is the rule in California; governmental liability is limited to exceptions specifically set forth by statute. (Id.)

Further, in order to state a cause of action for government tort liability, every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty. (Zuniga v. Housing Authority (1995) 41 Cal. App. 4th 82, 96.) Since the duty of a public entity can only be created by statute, the statute claimed to

establish the duty must be identified. (Id.)

The Complaint
alleges:

That at said time [02/03/2025] and place of the
accident [222 E Acacia Avenue, Glendale, CA 91205] described in the complaint,
and that defendants and each of them did not exercise ordinary care, caution or
prudence to avoid or prevent the accident described in said complaint, and that
said accident and injuries sustained by plaintiff was actually and proximately
caused by said fault, carelessness and negligence of defendants and each of
them named in the complaint. The Defendant Employer(s) had independent duties
to properly hire, train, and supervise defendant employee, and that Defendant
employee failed said duties.

(Compl. at
p.5.)

As currently worded,
the Complaint lacks any reference to a statutory basis for Plaintiffs' claims
against a public entity like GUSD/TRMS and merely pleads a common law claim for
negligence. The Complaint also lacks any
supporting facts detailing what occurred and how each of the Defendants were
involved in the subject incident. Furthermore, the allegations are not pleaded with the
requisite particularity for a statutory claim against a public entity.

In opposition,
Plaintiffs argue: "Here, the Complaint alleges that on February 3, 2025, minor
Plaintiff Raymond Raffouly was injured at Theodore Roosevelt Middle School when
he suffered a fall, injuring his knee and ankle. School personnel were placed
on notice of his injuries. Despite having notice that Plaintiff was injured and
unable to participate in physical education, Defendant

David Beard required
Plaintiff to participate in physical education and complete a 200-meter run.
Plaintiff advised Mr. Beard that he was injured and could not participate.
Defendants nevertheless required Plaintiff to participate. Plaintiff suffered
further injury to his knee and ankle as a direct result." (Opp. at p.5.) None of these "facts" were alleged in the current
version of the Complaint. However, this
shows that, upon amendment, Plaintiffs may have additional facts that support

their Negligence claim.

The demurrer to the
Complaint is sustained with leave to amend.

B.

TRMS – Sustained
Without Leave to Amend.

GUSD and TRMS argue
that TRMS is not a separate entity which could be sued as only a school
district may be sued.

GUSD and TRMS
acknowledge that no California Court of Appeal has addressed the issue, but
cites to various federal cases. (Dem. at
pp.7-8; see Lindsey v. Claremont Middle School (N.D. Cal., Jan. 29,
2013, No. C 12-02639 LB) 2013 WL 358173, at *2 [The court further explained
that, as Defendants correctly noted in their motion, Claremont [Middle School]
is not an entity subject to suit. ... Rather, OUSD is the entity that
should be named as a defendant to any First Amended Complaint.]; Doe By and
Through Doe v. Petaluma City School Dist. (N.D. Cal. 1993) 830 F.Supp.
1560, 1583 [“Kenilworth Junior High School is not an entity capable of being
sued. The entire complaint against it is therefore DISMISSED WITH PREJUDICE.”].)

Education Code, §
35010 states:

(a) Every school district shall be under the control of a
board of school trustees or a board of education.

(b) The governing board of each school district shall
prescribe and enforce rules not inconsistent with law, or with the rules
prescribed by the State Board of Education, for its own government.

(Ed. Code, § 35010.)

Education Code, §
35162 states: “In the name by which the district is designated the governing
board may sue and be sued, and hold and convey property for the use and benefit

of the school district.”

In opposition,

Plaintiffs do not oppose TRMS's dismissal but argue that TRMS's non-suable status does not defeat a substantive claim against GUSD or warrant GUSD's dismissal.

Based on the Court's

read of the demurrer papers, the Court understood GUSD/TRMS as seeking TRMS's dismissal only. (Dem. at p.8 [“Further, the District's Demurrer to Plaintiffs' Complaint should be dismissed as to Roosevelt – without leave to amend – on the basis that Roosevelt is itself, not a suable entity.”].)

As TRMS is an

individual department/subdivision of GUSD and is not a separate entity, the demurrer as brought by TRMS is sustained.

As TRMS is not a proper party and the parties do not contest TRMS's dismissal, the demurrer is sustained without leave to amend.

MOTION TO STRIKE

ANALYSIS:

GUSD and TRMS move to

strike the allegations for punitive damages.

“Notwithstanding any other provision of law, a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant.” (Gov. Code, § 818.) “Government Code section 818 in context means that ... a plaintiff who alleges injury caused by a public entity may be entitled to actual damages for that injury, but not punitive damages. [Citations.]” (Marron v. Superior Court (2003) 108 Cal.App.4th 1049, 1059.)

“This section was added to the code upon a recommendation of the California Law Revision Commission, which commented, ‘Public entities shall not be liable for punitive or exemplary damages. Such damages are imposed to punish a defendant for oppression, fraud or malice. They are

inappropriate where a public entity is involved, since they would fall upon the innocent taxpayers.' (Recommendations Relating to Sovereign Immunity, No. 1—Tort Liability of Public Entities and Public Employees, 4 Cal.Law Revision Com. Rep. (Jan. 1963) p. 817; see also *City of Salinas v. Souza & McCue Construction Co.* (1967) 66 Cal.2d 217, 228 [57 Cal. Rptr. 337, 424 P.2d 921].)" (State Dept. of Corrections v. Workmen's Comp. App. Bd. (1971) 5 Cal.3d 885, 887–888.)

In light of Government Code, § 818 and supporting case law, the unopposed motion to strike the allegations for punitive damages is granted without leave to amend.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendants Glendale

Unified School District and Theodore Roosevelt Middle School's Demurrer and Motion to Strike came on regularly for hearing on July 17, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE

DEMURRER TO THE COMPLAINT IS SUSTAINED WITH 30 DAYS' LEAVE TO AMEND AS AGAINST DEFENDANT GLENDALE UNIFIED SCHOOL DISTRICT.

THE

DEMURRER TO THE COMPLAINT IS SUSTAINED WITHOUT LEAVE TO AMEND AS AGAINST DEFENDANT THEODORE ROOSEVELT MIDDLE SCHOOL.

THE MOTION TO STRIKE ALLEGATIONS FOR PUNITIVE DAMAGES IS GRANTED WITHOUT LEAVE TO AMEND.

THE AUGUST 6, 2026 ORDER TO SHOW CAUSE RE: FAILURE OT FILE
PROOF OF SERVICE IS ADVANCED AND DISCHARGED.

THE AUGUST 6, 2026 CASE MANAGEMENT CONFERENCE IS ADVANCED
AND CONTINUED TO SEPTEMBER 23, 2026 AT 9:00 AM

DEFENDANT

GLENDALÉ UNIFIED SCHOOL DISTRICT TO GIVE

NOTICE TO PLAINTIFF, PLAINTIFF TO GIVE NOTICE OF THE CASE MANAGEMENT CONFERENCE
DATE TO ALL OTHER PARTIES.

IT IS SO ORDERED.